

		uncertain. Therefore, the special demurrer on the grounds of uncertainty is OVERRULED. The 2nd – 5th, 7th, 8th and 10th – 14th affirmative defenses concern new matter but fail to state sufficient facts to constitute a defense. Instead, they only state legal principles and conclusions. For example, the 3rd affirmative defense for Failure to Mitigate merely alleges: “Plaintiff has failed to mitigate its damages, if any, and to the extent of such failure to mitigate, any damages awarded to Plaintiff should be reduced accordingly.” (Answer, p. 2:12-13.) The Answer fails to state facts describing what Plaintiff failed to do, when, or how damages would be reduced. Similarly, the 4th affirmative defense for Statute of Limitations alleges: “The Complaint and each of its causes of action are barred by the provisions of one or more of the Applicable statute of limitations provisions contained within the California Code of Civil Procedure.” (Answer, p. 2:16-18.) However, the Answer fails to identify any applicable statute of limitations or dates showing time bar, which are the two ways a statute of limitations defense may be properly plead. (See Code Civ. Proc., § 458; <i>Hall v. Chamberlain</i> (1948) 31 Cal.2d 673, 680.) The remaining affirmative defenses fail to state sufficient facts for the reasons stated in Plaintiff’s demurrer. The 1st, 6th, 9th, 15th and 16th affirmative defenses are not affirmative defenses. The 1st affirmative defense is a ground for demurrer under Code of Civil Procedure, section 430.10, subdivision (e), not an affirmative defense. Defendant raised this ground in its pending demurrer to the Second Amended Complaint. The 6th, 9th, 15th and 16th affirmative defenses merely deny Plaintiff’s factual allegations. Thus, the demurrer to the 1st – 16th affirmative defenses on the grounds that they fail to state facts to constitute a defense is SUSTAINED with 20 days leave to amend. Plaintiff asserts no specific argument regarding the 17th affirmative defense for Additional Affirmative Defenses. Therefore, the demurrer to the 17th affirmative defense is OVERRULED. Moving party to give notice.
2	Ghadiri v. Adam 2025-01481407 Demurrer to Amended Complaint	Defendants Brent Alexander Adam and Chandel Leigh Adam’s Demurrer to the First Amended Complaint is SUSTAINED with leave to amend. “To determine the statute of limitations which applies to a cause of action it is necessary to identify the nature of the

		cause of action, i.e., the ‘gravamen’ of the cause of action. The nature of the right sued upon and not the form of action nor the relief demanded determines the applicability of the statute of limitations under our code.” (<i>Hensler v. City of Glendale</i> (1994) 8 Cal.4th 1, 22-23.) The complaint in <i>Vera v. REL-BC, LLC</i> (2021) 66 Cal.App.5th 57, 65 based a breach of contract claim on the failure to disclose material facts regarding alleged defects in a residential property sale. Plaintiff bases his claim on the same failure to disclose. (FAC, ¶¶ 28-31.) The court in <i>Vera</i> ruled the gravamen of the plaintiff’s claim was in fraud. (<i>Ibid.</i>) Thus, the gravamen of Plaintiff’s claim is also in fraud. “Within three years: [¶¶] (d) An action for relief on the ground of fraud or mistake. The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Code Civ. Proc., § 338(d).) The FAC alleges the purchase occurred in May 2021. (FAC, ¶ 9.) Plaintiff attached an email correspondence from June 4, 2021 to the FAC between his real estate agent and Defendants’ agent in which Plaintiff’s agent admits Plaintiff called about the allegedly fraudulently concealed defect. Thus, from the face of the FAC, the latest Plaintiff could have discovered the defect was June 4, 2021. Plaintiff filed his complaint on May 8, 2025. Therefore, Plaintiff’s first cause of action is barred by the statute of limitations. Accordingly, the Adams’ demurrer is sustained. Leave to amend is granted as it is not evident from the face of the FAC no breach of contract claim can be asserted.
3	Lee v. Hyundai Motor America 2025-01521906 Demurrer to complaint	Defendant PB/J Automotive Inc. dba Tustin Hyundai’s Demurrer to Plaintiff Sang Jik Lee’s Complaint is CONTINUED to October 12, 2026, at 1:45 p.m. in Department C15 as Defendant’s counsel did not sufficiently meet and confer prior to filing the demurrer. The case management conference is also continued to October 12, 2026, at 1:45 p.m. in Department C-15. Before filing a demurrer, the moving party shall meet and confer with the opposing party in person, by telephone, or by video conference at least 5 days before a responsive pleading is due to see if a resolution can be reached on the objections to the pleading. (Code Civ. Pro., § 430.41, subds. (a), (a)(2).)